

CHAPTER 30.

An Act to provide, with certain exceptions, for the compulsory closing of retail meat traders' shops and stalls on Sundays. [14th July 1936.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. Subject to the provisions of this Act, it shall not be lawful for any person to carry on the business of a retail dealer in butchers' meat on Sunday, and, where the business is carried on in a shop, the shop shall for the purposes of that business be closed for the serving of customers on Sunday. Business of retail dealer in meat not to be carried on on Sunday.

2. Notwithstanding anything in this or any other Act prohibiting the carrying on of business on Sunday, any person of the Jewish religion may carry on the business of a retail dealer in Kosher meat and may keep open a shop for the serving of customers for the purposes of that business on Sunday, on condition that he complies with the following provisions (that is to say) :— Exemption as respects Jewish retail dealers in meat.

- (a) he must be licensed for the sale of Kosher meat by the local Board of Shechita, or in the absence of any such Board by a committee appointed for the purpose by the local Jewish congregation established in accordance with Jewish law;
- (b) he shall not carry on the business either of a retail dealer in Kosher meat or of a retail dealer in butchers' meat on Saturday and, if he carries on the business in a shop, he shall not keep open the shop for the purpose of the business on Saturday;
- (c) he shall previously give notice to the local authority of his intention to carry on the business of a retail dealer in Kosher meat on Sunday; and

- (d) if he carries on the business in any shop, he shall cause to be kept conspicuously posted in the shop a notice stating that it is open on Sunday for the purposes of retail dealing in Kosher meat, but is not open on Saturday.

Modification
of Shops
Act, 1912.
2 & 3 Geo. 5.
c. 3.

3. As respects any shop in which any such person carries on the said business on Sunday in compliance with the provisions of the foregoing section, the Shops Act, 1912, shall have effect subject to the following modifications (that is to say):—

- (a) Subsection (1) of section one of that Act (which relates to the hours of employment of shop assistants) shall have effect as if it required a shop assistant not to be employed about the business of a shop after half-past one o'clock in the afternoon on at least one day in every week other than Saturday; and
- (b) Section four of that Act (which relates to the closing of shops on weekly half-holidays) shall have effect as if—
- (i) subsection (1) required every shop to be closed for the serving of customers not later than one o'clock in the afternoon on one day in every week other than Saturday; and
- (ii) in subsection (2) the word "Friday" were substituted for the word "Saturday" wherever the last mentioned word occurs.

Provisions
as to
delivery of
goods.

4. It shall not be lawful to dispatch any butchers' meat from a shop or to deliver any butchers' meat so dispatched at any time when under the provisions of this Act the shop may not be open for the serving of customers:

Provided that the provisions of this section shall not apply—

- (a) on any Sunday being also Christmas Day; or
- (b) on any Sunday when the succeeding Monday is Christmas Day.

Saving for
ships.

5. Nothing in this Act shall prevent the sale, dispatch, or delivery of butchers' meat required by any person for a ship or aircraft on her arrival at,

or immediately before her departure from, a port or aerodrome.

6.—(1) Any person who contravenes the provisions of this Act shall be liable to a penalty not exceeding in the case of a first offence five pounds and in the case of a second or subsequent offence twenty pounds.

Penalties
and enforce-
ment of
Act.

(2) Sections thirteen and fourteen of the Shops Act, 1912 (which relate to the enforcement of that Act), shall apply with respect to the provisions of this Act as they apply with respect to the provisions of that Act.

7. In this Act the expressions "local authority," "shop," and "shop assistant" have respectively the same meanings as in the Shops Act, 1912, the expression "butchers' meat" means beef, mutton, veal, lamb or pork (including livers, heads, feet, hearts, lights, kidneys or sweetbreads), whether fresh, chilled, frozen or salted, and includes Kosher meat, and the expression "Kosher meat" means butchers' meat killed and prepared by the Jewish ritual method.

Interpreta-
tion.

8.—(1) This Act may be cited as the Retail Meat Dealers' Shops (Sunday Closing) Act, 1936, and shall come into operation on the first day of January, nineteen hundred and thirty-seven.

Short title,
commence-
ment and
extent.

(2) This Act shall not extend to Scotland or Northern Ireland.

CHAPTER 31.

An Act to consolidate the enactments relating to non-contributory Old Age Pensions.

[14th July 1936.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Every person in whose case the conditions laid down by this Act for the receipt of an old age pension (in this Act referred to as statutory conditions) are

Right to
receive old
age pension.